

Jakesh Singh Alias Kewal v. State of U.P.

Allahabad High Court · Division Bench · 25 September 2013 · Writ-C No. 50597 of 2013 · **Writ dismissed; demand notice not quashed; 6.5 bill complaint left open.**

HEADNOTE

Division Bench refused to quash a 31.07.2012 demand notice after the licensee stated that an electricity connection had already been sanctioned to the petitioner. Any remaining grievance about the electricity bill may be raised by an appropriate complaint under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the concerned Executive Engineer.

FACTUAL SUMMARY

Jakesh Singh Alias Kewal petitioned to quash a demand notice dated 31.07.2012 issued by respondent no. 3, asserting that he had no electricity connection. On 17.09.2013 the Court gave the licensee's counsel a week to obtain instructions. After instructions, counsel submitted that an electricity connection had already been sanctioned to the petitioner and that the demand notice related to that connection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection to Executive Engineer

HOLDING

A demand notice will not be quashed in writ where the licensee states that a connection has already been sanctioned and the demand relates to it; any remaining grievance about the electricity bill may be raised by an appropriate complaint under clause 6.5 of the Supply Code, 2005 before the concerned Executive Engineer. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL

Left to an appropriate complaint under clause 6.5 before the Executive Engineer. ¶ 1